Religion / Beliefs

In 2020, five % (per cent) of consultation requests to the Federal Anti-Discrimination Agency concerned the characteristic of religion and two percent of enquiries concerned the belief system.

When it comes to discrimination on account of religion, the visibility of one's religious affiliation plays an important role. In this context, the type of discrimination experienced varies depending on faith. While Jews frequently report hostility or insults in everyday situations, Muslim women who wear headscarves experience discrimination particularly when seeking a job.

All recognised religious affiliations as well as people who do not belong to any denomination are, in general, protected from discrimination. Under certain circumstances, however, church employers can impose special requirements regarding their employees as part of what is known in Germany as the 'church privilege'. Time and again this topic comes up in requests to the Federal Anti-Discrimination Agency, for instance, when someone who does not belong to any denomination is denied a job in a Christian hospital. This privilege was defined in greater detail through several decisions by the European Court of Justice (German: EuropäischerGerichtshofEuGH ()) over the past years, according to which loyalty to the Church ethos cannot be required across the board for all activities.

Moreover, the General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)) also prohibits discrimination on grounds of a specific belief system. According to German court decisions, however, this only refers to holistic attitudes that shape a person's overall world view – this does not, for instance, include party affiliations or opinions about individual societal issues. In addition, the AGG (Allgemeines Gleichbehandlungsgesetz)'s protection of beliefs is restricted to working life.

The Federal Anti-Discrimination Agency offers various information and practical support materials on this topic.

FAQs (Frequently Asked Questions) on religion / beliefs

Frequently Asked Questions

1. How does the state protect freedom of religion? Is there legal protection against discrimination?

Freedom to profess a religious or philosophical creed for all citizens is set out in Article 4 of the Basic Law. Furthermore, the General Act on Equal Treatment (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)) protects people against discrimination on grounds of religion or belief in working life (Section 1 *AGG* (Allgemeines Gleichbehandlungsgesetz)). Discrimination on grounds of religion is also prohibited in everyday transactions, e.g. (for example) when looking for a flat.

2. How many people in Germany belong to a religious community?

About 81 million people lived in Germany in 2017. Of those, around 55 million were members of religious communities, more than 27 million were non-denominational.

Religion/Community	**In million**	**In per cent (%)**
Non-denominational/no affiliation	27.1	32.9
Catholic church	23.3	28.3

Protestant regional churches	21.6	26.2
Islam	4.7	5.7
Orthodox/oriental churches	2.0	2.4
Free churches/independent communities	1.8	2.2
New religions/esotericism	0.9	1.1
Non-denominational organisations	0.4	0.5
Buddhism	0.3	0.4
Judaism (excluding persons not belonging to a community)	0.1	0.1
Hinduism	0.1	0.1
Yezidi	0.1	0.1

Source: REMID – the "Religious Studies Media and Information Service" in Germany (2017)

3. Are there any religious exemptions from the equal treatment requirement for employers?

The General Act on Equal Treatment (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)) prohibits discrimination on grounds of religion or belief in relation to employment and occupation (Section 2 AGG (Allgemeines Gleichbehandlungsgesetz)). The scope of protection covers the entire work life: from recruitment to the employment relationship to termination.

The question if and to what extent religious communities as employers may insist on their staff belonging to a certain religion when recruiting personnel has been debated in court multiple times already. The following applies in principle: discrimination on the grounds of religion in application procedures is prohibited pursuant to Section 7 (1) of the General Act on Equal Treatment (AGG (Allgemeines Gleichbehandlungsgesetz)). In such cases, affected persons may claim damages and compensation pursuant to the AGG (Allgemeines Gleichbehandlungsgesetz).

However, Section 9 of the AGG (Allgemeines Gleichbehandlungsgesetz) provides an exemption thereof for religious communities, setting out that discrimination in connection with the right to self-determination of religious communities may be justified and permissible.

Yet, in early 2019, the Federal Labour Court (BAG (German abbreviation: Bundesarbeitsgericht)) restricted this right to self-determination of the Christian churches. The BAG (German abbreviation: Bundesarbeitsgericht) ruled that the dismissal of a remarried physician-in-chief by the Catholic operator of a hospital was unlawful. As a result, church employers now have to carefully examine and justify duties of loyalty. Already in 2018, the European Court of Justice ruled that loyal behaviour had to be justified on a case-by-case basis taking into account the concrete activity. Since then, the following has applied: only if a certain religion or belief, with respect to the type of activity or the circumstances under which it is practised, constitutes an essential, legitimate or justified occupational requirement, may an unequal treatment on the basis of the provision under Section 9 (1) of the *AGG (Allgemeines Gleichbehandlungsgesetz)* (Allgemeines Gleichbehandlungsgesetz) be permitted. An application may be rejected on the ground of the applicant having no religious affiliation if the professional position (such as the head of a religious community) is tied to making a contribution to its religious mission or the necessity to provide a credible external representation of the church or organisation.

4. Who is affected by discrimination on the grounds of religious affiliation?

Counselling by the Federal Anti-Discrimination Agency and numerous studies show that Muslim women are frequently affected by discrimination. In particular women who wear a headscarf frequently contact our counselling team on grounds of unequal treatment in working life. People of Jewish faith also frequently experience discrimination, e.g. (for example) bullying in the workplace or when they are refused to enter a restaurant when wearing a kippah. But also people who belong to other religions, who are non-denominational and people who support a belief, such as humanism, may be subject to discrimination.

People are particularly often discriminated against when their religious affiliation becomes visible, e.g. (for example) by wearing certain articles of clothing, such as a kippah or a headscarf, or by participating in religious festivals. Sometimes there is even discrimination because of a name. For example, one person got in touch with our counselling service because he was insulted anti-Semitically because of his first name "David".

5. In what way are Muslims discriminated against?

Around 4.5 million Muslims live in Germany. They make up the second largest religious group in Germany, alongside the Christian churches. People of Muslim faith are increasingly affected by exclusion, discrimination and racist violence in Germany and in Europe. A very large number of requests received by our counselling service have been from women who were rejected for a job or whose request was turned down when looking for a flat because of their Muslim headscarf.

Furthermore, studies on behalf of the Federal Anti-Discrimination Agency show that Muslim pupils, despite similar scholastic performance, less often receive a recommendation for attending grammar school and disproportionately often go to a special needs school. (Source: Second Joint Report on the topic **"Discrimination in Education and in the Workplace"**) In the working world, Muslims are thought to have a below-average qualification level and show low performance. Moreover, people tend to think that colleagues might react negatively to Muslim co-workers.

6. Which role does the headscarf play in the working world?

It is estimated that about 28 per cent of Muslims living in Germany wear a headscarf. This was shown in a **study** by the Federal Office for Migration and Refugees from 2009.

Over the past few years, there has been an increasing number of debates and court rulings on the visible wearing of religious symbols in the workplace. In Germany and at European level, the focus of attention has mostly been on Muslim women's headscarves.

In particular Muslim women who wear a headscarf are subject to discrimination disproportionately often in working life in Germany. In this context, for instance, they get asked by their employers to take off their headscarf and many are not even invited to a job interview in the first place.

Often such discrimination is justified with a company's desire to remain neutral or with customer requests. However, well-founded reasons need to be put forward when it comes to banning headscarves and other religious symbols in working life, as those bans directly interfere with the affected persons' fundamental rights.

As a general rule, all people in Germany may practice their own religion freely – also in the workplace. Furthermore, the General Act on Equal Treatment (*AGG*) prohibits discrimination on grounds of religion or belief in working life. This means that employers are not allowed to discriminate against individuals on the grounds of their faith either during the application procedure or during everyday work.

However, there are exceptions and regulations justifying a ban on religious symbols in the workplace by the employer. If it were too dangerous to wear a headscarf or a necklace while working on machines, a prohibition on objective grounds would be permissible. There are additional exceptions which, however, vary depending on whether it is the private or public sector or a church.

Further information on this topic can be found under the heading **Wearing a headscarf in the workplace: Frequently Asked Questions**

7. In what way are Jews discriminated against?

Over the past few years, anti-Semitism in the shape of acts of violence has received greater public attention, not least through the right-wing extremist terrorist attack in Halle (Saale) in 2019. In many cases, anti-Semitism also occurs in the form of physical attacks, verbal threats and insults, hate speech, damage to property and anti-Semitic content at gatherings. According to the **Federal Government**, 2,032 anti-Semitic assaults were recorded by the police in 2019. Of those, 1,898 were rated as right-wing extremist. Only 268 of these assaults were reported to the police. The **Association of Counseling Centers for Victims of Right-wing, Racist and Anti-Semitic Violence in Germany** assumes that the number of unreported anti-Semitic assaults is even a lot higher. But Jews can also find themselves confronted with low-threshold forms of anti-Semitism: for instance, through bullying by neighbours, harassment at schools or anti-Semitic language in social media. For instance, employees who felt they were bullied in the work environment on the grounds of their Jewish faith got in contact with the Federal Anti-Discrimination Agency.

In the **report** of the Federal Association of Departments for Research and Information on Antisemitism (Rias e. V. (German abbreviation: eingetragener Verein)), anti-Semitic incidents from 2019 throughout Germany have been recorded.

8. What is a belief?

The legal term "belief" can be interpreted as a binding, identity-establishing understanding of human life and the world for the conduct of life which is shared by a relevant number of other people. In principle, it has to be a conviction similar to religion, but relating to this world. Courts of law interpret a belief as a subjectively binding system of thought which deals with questions of the overall meaning of the world and in particular of the life of human beings in this world and which leads to corresponding value judgements (e.g. (for example) Federal Administrative Court, decision of 19 February 1992 – 6 C 5/91). Thus, convictions on certain individual aspects of life do not constitute a belief. Accordingly, purely political convictions are not recognised as beliefs (Administrative Court of Berlin, decision of 18 April 2018 – 28 K 6.14), nor is membership of a trade union (Court of Labour of Munich, decision of 18 October 2012 – 423 C 14869/12). Macrosocial theories and philosophies such as Marxism or anthroposophical teachings, however, are classified as beliefs.

9. Is the non-affiliation to a religion or a belief also protected?

The Basic Law also protects a person's right to not belong to a religious or ideological community. This is called negative religious freedom or negative freedom of belief. Consequently, the *AGG* (German abbrevation: Allgemeines Gleichbehandlungsgesetz) also provides protection against discrimination on the grounds of religion or belief even if any context is rejected by the individual – whether it be religiously or ideologically-secularly founded. Therefore, as a matter of principle, an employer may not turn down an application on the grounds that the applicant is not a member of a certain religious community.